



Book	Policy Manual
Section	BOARD POLICIES UNDER CONSIDERATION
Title	Vol. 43, No. 2 - January 2025 New PARENTS' BILL OF RIGHTS
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New Policy - Vol. 43, No. 2

5780.01 - PARENTS' BILL OF RIGHTS

The Board of Education recognizes that parents have a fundamental right to make decisions concerning the upbringing, education, and care of their children and promotes parental involvement in the District's public school system. In addition, parents have certain rights in the school system to know about their student's educational experience. Specific rights are listed in topic areas of these policies.

Sexuality Content/Mental, Emotional, or Physical Health or Well Being/Health Care Services

Definitions:

For purposes of this policy:

"Age-appropriate" and "developmentally appropriate" content refers to activities or items that are generally accepted as suitable for children of the same chronological age or level of maturity or that are determined to be developmentally appropriate for a child, based on the development of cognitive, emotional, physical, and behavioral capacities that are typical for an age or age group.

"Student's mental, emotional, or physical health or well-being" includes, at a minimum, any of the following:

- A. A student's academic performance;
- B. Any significant sickness or physical injury, or any psychological trauma suffered by a student;
- C. Any harassment, intimidation, or bullying, as defined in section 3313.666 of the Revised Code, by or against a student in violation of School District policy;
- D. Any request by a student to identify as a gender that does not align with the student's biological sex;
- E. Exhibition of suicidal ideation or persistent symptoms of depression or severe anxiety, or other mental health issues.

"Sexuality content" means any oral or written instruction, presentation, image, or description of sexual concepts or gender ideology provided in a classroom setting. "Sexuality content" does not mean any of the following:

- A. Instruction or presentations in sexually transmitted infection education, child sexual abuse prevention, and sexual violence prevention education provided under division (A)(5) of section 3313.60 or section 3314.0310 or 3326.091 of the Revised Code;
- B. Instruction or presentations in sexually transmitted infection education emphasizing abstinence provided under section 3313.6011 of the Revised Code;

- C. Incidental references to sexual concepts or gender ideology occurring outside of formal instruction or presentations on such topics, including references made during class participation and in schoolwork.

Sexuality Content and Parental Notification

The Board will ensure that any sexuality content is age-appropriate and developmentally appropriate for the age of the student receiving the instruction, regardless of the age or grade level of the student. The Board will not permit instruction that includes sexuality content in grades kindergarten through grade three (3).

Prior to providing instruction that includes sexuality content or permitting a third party to provide such instruction on behalf of the District, the Board will provide parents the opportunity to review any instructional material that includes sexuality content. Upon request of the student's parent, a student shall be excused from instruction that includes sexuality content and shall be permitted to participate in an alternative assignment.

Student Services/Mental, Emotional, Physical Health or Well-Being/Safe and Supportive Learning Environment and Parental Notification

The Board will promptly notify a student's parent of any substantial change in the student's services, including counseling services or monitoring related to the student's mental, emotional, or physical health or well-being or the school's ability to provide a safe and supportive learning environment for the student. Such notification will be provided by the student's building administration through email and/or telephone conference. The Board will not inhibit parental access to the student's education and health records maintained by the school.

School District personnel will not directly or indirectly encourage a student to withhold from a parent information concerning the student's mental, emotional, or physical health or well-being, or a change in related services or monitoring.

School District personnel will not discourage or prohibit parental notification of and involvement in decisions affecting a student's mental, emotional, or physical health or well-being.

Procedure for Authorization From Parents for Health Care Services

Authorization of parents must be obtained by the Board prior to providing any type of health care service to students, including physical, mental, and behavioral health care services. Parents may choose whether to authorize the Board to provide a health care service to the parent's child.

To facilitate parental involvement and decision-making on such authorization, at the beginning of each school year, the Board will notify parents of each health care service offered at, or facilitated in cooperation with, their student's school of attendance and of the parent's option to withhold consent or decline any specified service. If granted, parental consent to health care services does not waive the parent's right to access their child/children's educational or health records or to be notified about a change in the student's services or monitoring as set forth herein.

Prior to providing a health care service to a student, the building administration of the student's school of attendance will notify a parent whether the service is required to be provided by the School District under State law and if other options for a student to access the service exist.

At the beginning of each school year, the Board will provide an annual notice to parents of known health care services required by the District under State law. **[END OF OPTION]**

These notification requirements do not apply to emergency situations, first aid, other unanticipated minor health care services, or health care services provided pursuant to a student's IEP or the District's obligation under section 504 of the "Rehabilitation Act of 1973," 29 U.S.C. 794.

Process for Resolving Parental Concerns

Parents may file written concerns with the Principal or other building administrator of the student's school of attendance regarding any topics addressed in the above Parental Rights and Parental Involvement section of this policy. Parents will be notified at the beginning of each school year of their right to file a written concern. The Principal or other building administrator will take steps with parent(s) to resolve the concern within thirty (30) days of receipt of the written concern. If not satisfied with the outcome of the resolution by the Principal or building administrator, the parent(s) may appeal a decision at that level to the Superintendent.

If a parent appeals the Principal's or building administrator's decision, the Superintendent or the Superintendent's designee will conduct a hearing on the decision. Based on the findings of that hearing, the Superintendent shall decide whether to affirm the Principal's or building administrator's decision. If the Superintendent determines not to affirm the decision, the

Superintendent shall determine a resolution to the parent's concern and communicate the decision to the parent. A parent may appeal the Superintendent's decision to the Board of Education.

If the Superintendent's decision is appealed, the Board shall review the Superintendent's decision and, if the Board determines it necessary, hold a hearing on the decision and, based on that hearing, either affirm the Superintendent's decision or determine a new resolution to the parent's concern.

Nothing in this policy shall be read to prevent a parent from contacting a member of the Board regarding a concern with the operation of a school under the supervision of the Board of Education.

Parent Right to Inspect Instructional Materials

In addition, parents have the right to inspect any instructional materials used as part of the educational curriculum for their student. Instructional materials means instructional content, regardless of format, that is provided to the student, including printed or representational materials, audio-visual materials, and materials available in electronic or digital formats (such as materials accessible through the Internet). Instructional material does not include academic tests or academic assessments.

The Superintendent shall, in consultation with parents, develop a procedure addressing the right of parents as described herein and procedures to assure timely response to parental requests to review instructional material. The procedure shall also address reasonable notification to parents and students of their rights to review these materials. See AG 9130A and Form 9130 F3.

Right to Inspect Technology Provider Contract

The District shall provide parents and students with an opportunity to inspect a complete copy of each technology provider contract.

This policy shall not supersede any rights under the Family Education Rights and Privacy Act.

R.C. 3109.01, 3313.473, 3319.325, 3319.326
20 U.S.C. 1232h

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